

## CHAPTER 8

An Act to empower the Central Electricity Generating Board to produce radioactive material in a nuclear reactor at any of the Board's generating stations for sale or supply to other persons, and to sell or supply radioactive material produced in any such reactor: and for purposes connected therewith.

[2nd March, 1961]

**B**E it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension  
of powers  
of Central  
Electricity  
Generating  
Board.

1.—(1) Notwithstanding anything in the proviso to subsection (7) of section two of the Electricity Act, 1957 (which limits the powers of the Central Electricity Generating Board in respect of manufacture), the Central Electricity Generating Board shall have power (subject to the next following subsection) to produce radioactive material in a nuclear reactor at any of the Board's generating stations for the purpose of selling or otherwise supplying it to other persons; and the Board shall have power to sell or otherwise supply radioactive material produced in any such nuclear reactor.

(2) Subsection (9) of section two of the Electricity Act, 1947 (which provides that the powers conferred on Electricity Boards by that Act and by section two of the said Act of 1957 shall not authorise those Boards to disregard any enactment or rule of law) shall apply to any power exercisable by virtue of the preceding subsection.

(3) In accordance with the preceding subsections, the Electricity Acts, 1947 and 1957, shall have effect subject to the amendments and adaptations specified in the Schedule to this Act.

(4) Any additional sums which, by reason of the provisions of this Act, may be required to be issued out of the Consolidated Fund, or paid into the Exchequer, or raised by the Treasury, under section forty-two of the Finance Act, 1956 (which relates to Exchequer advances to nationalised industries and undertakings), or under section seventeen of the Electricity Act, 1957 (which relates to Treasury guarantees), shall be charged on and issued out of the Consolidated Fund, or paid into the Exchequer, or may be raised by the Treasury, as the case may be.

(5) References in this Act to any enactment shall, except where the context otherwise requires, be construed as references to that enactment as amended or extended by or under any other enactment, including this Act.

## (6) In this Act—

“radioactive material” means a substance produced by a process of nuclear fission or by any other process whereby a substance is subjected to bombardment by neutrons or is otherwise subjected to ionising radiations;

“nuclear reactor” means any plant designed or adapted for the production of atomic energy by a fission process in which a controlled chain reaction can be maintained without an additional source of neutrons; and in this definition “plant” and “atomic energy” have the same meanings as in the Nuclear Installations (Licensing and Insurance) Act, 1959; and

“substance” means any natural or artificial substance, whether in solid or liquid form or in the form of a gas or vapour;

and for the purposes of this Act, and of section two of the Electricity Act, 1957, a substance possessing radioactivity which is wholly or partly attributable to a process shall be taken to be a substance produced by that process, and any reference to producing radioactive material shall be construed accordingly.

2.—(1) This Act may be cited as the Electricity (Amendment) Act, 1961. Short title,  
citation  
and extent.

(2) The Electricity Acts, 1947 and 1957, and this Act may be cited together as the Electricity Acts, 1947 to 1961.

(3) This Act shall not extend to Scotland or to Northern Ireland.

## SCHEDULE

### AMENDMENTS AND ADAPTATIONS

#### *The Electricity Act, 1947*

The reference in subsection (9) of section two to the Electricity Act, 1957, and (except where the context otherwise requires) any other reference to that Act, shall be construed as a reference to that Act as amended by this Act.

#### *The Electricity Act, 1957*

In section two, after paragraph (a) of subsection (7), there shall be inserted the following paragraph:—

“(aa) to produce radioactive material in a nuclear reactor at any of the Generating Board’s generating stations for the purpose of selling or otherwise supplying it to other persons, and to sell or otherwise supply radioactive material produced in any such nuclear reactor”;

in the proviso to that subsection, after the words “in paragraph (a)”, there shall be inserted the words “or paragraph (aa)”: and at the end of that section there shall be added the following subsection:—

“(9) In this section ‘radioactive material’ and ‘nuclear reactor’ have the meanings assigned to them respectively by subsection (6) of section one of the Electricity (Amendment) Act, 1961, and any reference to producing radioactive material shall be construed in accordance with that subsection.”

*Table of Statutes referred to in this Act*

| Short Title                                                         | Session and Chapter    |
|---------------------------------------------------------------------|------------------------|
| Electricity Act, 1947 ... ..                                        | 10 & 11 Geo. 6. c. 54. |
| Finance Act, 1956 ... ..                                            | 4 & 5 Eliz. 2. c. 54.  |
| Electricity Act, 1957 ... ..                                        | 5 & 6 Eliz. 2. c. 48.  |
| Nuclear Installations (Licensing and Insurance)<br>Act, 1959 ... .. | 7 & 8 Eliz. 2. c. 46.  |

## CHAPTER 9

An Act to provide for contributory pension schemes in respect of persons employed at certain agricultural institutions and colleges financed wholly or partly out of public funds. [2nd March, 1961]

**B**E it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Pension schemes for employees of certain agricultural institutions and colleges.

1.—(1) The Agricultural Research Council may with the approval of the Minister for Science make a scheme or schemes, and the Secretary of State and the Minister of Agriculture, Fisheries and Food may each make a scheme or schemes, providing for the payment by the authority who made the scheme, in such circumstances as may be specified by the scheme, of pensions, gratuities and other benefits to and in respect of persons, or any class or description of persons, employed—

- (a) in the case of a scheme made by the Council, at an institution or department of an institution which has been established or developed by the Council or which, in the opinion of the Council, is wholly or mainly maintained by grants made by the Council;
- (b) in the case of a scheme made by the Secretary of State, at an agricultural research institution or agricultural college in Scotland which, in the opinion of the Secretary of State, is wholly or mainly maintained by grants made by him;
- (c) in the case of a scheme made by the Minister of Agriculture, Fisheries and Food, at the National Institute of Agricultural Botany;

and a scheme shall provide for the payment of contributions to the said authority by persons so employed who participate in the scheme.